

Nadeem Ahmad v. Purvanchal Vidhut Vitarana Nigam, Varanasi

High Court of Judicature at Allahabad · Division Bench · 11 August 2022 · WRIT - C No. - 22212 of 2022 · **Writ disposed without merits; liberty to object under para 6.8 with stay of coercive action.**

HEADNOTE

Allahabad High Court disposed of a consumer writ seeking mandamus to decide a representation under clause 8.1 of the U.P. Electricity Supply Code, 2005, without expressing any opinion on merits. Liberty was given to file an objection under para 6.8 within four weeks, to be decided after hearing within four weeks thereafter, with coercive recovery stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Nadeem Ahmad, a consumer of Purvanchal Vidhut Vitarana Nigam at Varanasi, filed a writ petition seeking a mandamus that respondent no. 2 decide his representation dated 20 May 2022 strictly in accordance with clause 8.1 of the U.P. Electricity Supply Code, 2005. The petition was directed against an impugned electricity demand. Counsel for the distribution licensee stated on instructions that the petitioner may file an objection against that demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment as alternate remedy

HOLDING

Without expressing any opinion on merits, a writ seeking mandamus to decide a representation under clause 8.1 was disposed of by giving liberty to the consumer to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. If so submitted, respondent no. 2 shall decide it in accordance with law, preferably within four weeks, after affording a reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ seeking a clause 8.1 decision on a representation was disposed without merits, relegating the consumer to a para 6.8 objection against the impugned demand. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the para 6.8 objection is filed within four weeks, it is to be decided after hearing within four weeks, and coercive recovery is stayed for eight weeks or until disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED DEMAND AND OF THE REPRESENTATION DATED 20.05.2022

Court expressly declined to express any opinion on merits. ¶ 1

NOT DECIDED — WHETHER THE DEMAND IS GOVERNED BY CLAUSE 8.1 (THEFT) OR PARA 6.8 (UNAUTHORISED USE)

Petitioner invoked clause 8.1; the Court directed a para 6.8 objection without resolving the characterisation. ¶ 1

